



History
of the
Paulding County
Sheriff's Office

Established 1837



Paulding County Sheriff's Office 1906



THE OFFICE OF SHERIFF

The Office of Sheriff was created in 1792 when the first Sheriff was appointed by Northwest Territorial Governor St. Clair. Under the 1802 Ohio Constitution the office became an elective post; the original two-year term was extended to four years in 1936.

The duties of the Sheriff have remained unchanged since the creation of the office. The Sheriff is required to attend the Court of Common Pleas, Court of Appeals, County Court, and upon request, the Probate Court. In addition to insuring that order is maintained throughout these court proceedings, the Sheriff is empowered to adjourn the Court of Common Pleas if the judge fails to appear, and the Court of Appeals if a quorum is lacking.

Presently, the Sheriff serves all warrants, writs, subpoenas, and other orders from the Court of Common Pleas, Court of Appeals, County Court, Juvenile Court, and Probate Court. Warrants issued by the Governor are executed by the Sheriffs Office, which also serves writs and subpoenas issued by various state officials and boards.

In 1805 the Ohio General Assembly defined additional duties of the Sheriff: to preserve the peace by suppressing riots, unlawful assemblies and insurrections, to act as the official custodian of the county jail to apprehend and incarcerate all felons and traitors, to serve as county executioner (until 1886), to enforce the election laws at the request of the board of elections or the Secretary of State, to be present at all drawings of jurors, and to serve notice upon jurors.

Today, the Sheriff possesses jurisdiction coextensive with the county boundaries, including all municipalities and townships. In municipalities, the Sheriff and Mayor hold equal authority as law enforcement officers under state law.





THE FOLLOWING IS FROM THE 1892 PAULDING COUNTY ATLAS

The first jail in the county was a small brick one erected in Charloe in 1842. It was not a very substantial building, and its walls have long since fallen down and crumbled away. To the credit of the early settlers of the county be it said that this jail was seldom occupied by evil doers. The second jail was erected on the southeast corner of the court yard in Paulding, shortly after the removal of the county seat to that place. It was built of hewn logs closely fitted together, and the walls were made double on the sides as well as above and below. The doors were of huge plank heavily spiked and riveted together, and some of the cells were lined with heavy plates of sheet iron. But, notwithstanding this apparent security, escapes from the jail were frequent, so frequent, indeed, that a new and more substantial one became necessary. Accordingly, on May 7, 1874, the following notice appeared in Vol. I, No. 6, G, of the Paulding Democrat, and was published for six consecutive weeks:

Notice of the intention of the Commissioners of Paulding County, Ohio, to build a new jail. NOTICE is hereby given to all persons whom it may concern, that at the March session of the County Commissioners of Paulding County, Ohio, said commissioners decided in accordance to law under and by virtue of the provisions of a certain act of the general assembly of the State of Ohio, passed April 21, 1859, entitled, 'An act authorizing County Commissioners to purchase land for the use of Court Houses. Jails and County Infirmaries, and to erect buildings thereon, etc..' and the acts amendatory thereto, to purchase ground and erect a new jail in the town of Paulding, Paulding County, Ohio, and that so soon as legal notices are given according to law. and publication thereof complete, they intend to take the necessary steps to advertise for sealed proposals for the erection of the said building, work to commence as soon as said commissioners can make preparation therefor, and that on Friday, the 12th day of June, 1874. at 10 o'clock. A. M. of said day. They will meet at the Auditor's office in said County of Paulding, to hear petitions and remonstrances against such proposed improvement. By order of the County Commissioners of Paulding County, Ohio.

V. V. PURSEL. COUNTY AUDITOR.

In due time. after the publishing of the above notice, the contract for building a new jail and Sheriffs residence combined was let. As there was no railroad passing through the town at that time, the cost of getting stone and other material on the ground was much greater than at the time of building the Court House, and the work progressed rather slowly. The building was not completed until 1876, and at a cost of about \$25,000.. The basement is of cut limestone, above which are two stories of brick with stone trimmings. It was constructed on the most modern and improved plans, and is regarded as one of the securest jails and most convenient Sheriffs residence in Northwestern Ohio. It is located on Williams Street, in Paulding, about one-half block south from the southwest corner of the Court House yard.



A. J. Smith
Appointed 1837



Ephriam Burwell
Appointed 1841



Matthew Fleming
Elected 1843



Wm. K. Daggett
Elected 1847



Thomas C. Banks
Elected 1849



John Crossen
Elected 1853



Isaiah Richards
Elected 1857



Freeborn Mellinger
Elected 1861



Fielding S. Cable
Elected 1863



Andrew J. Meng
Elected 1865



Jasper A. Ferguson
Elected 1869/ 1877



Dr. Hiram Ayers
Elected 1873



Samual J. Tate
Elected 1879



David W. Parr
Elected 1883



Edward C. Swain
Elected 1887



John J. Clark
Appointed 1889



A. H. Saylor
Elected 1889



Edward Staley
Elected 1891



Charles E. Hakes
Elected 1895



Henry B. Wilson
Elected 1897



T. W. Poorman
Elected 1899



Henry Betts
Elected 1904



Chancy Vogel
Elected 1908



Frank Zuber
Elected 1912



Vern Shirley
Elected 1916



Clair Hughs
Elected 1920



H. D. (Doc) Betts
Elected 1924



Frank Jackson
Elected 1928



Irvin Shaw
Elected 1930



Arthur Betts
Elected 1934



Roy Bates
Elected 1940



Frank Wallar
Elected 1948



John L. Keeler
Elected 1952/1972



F. Paul Carnahan
Elected 1968



Steven Porter
Elected 1984



Michael Lee
Elected 1988



*Sheriff Robert Iler
Appointed 1992*



*Sheriff David Harrow
Elected 1992*

On the following pages are a number of pictures and articles about the Paulding County Sheriff's Office. We have gathered a large amount of information about the Sheriff's Office and the past Sheriffs. We hope to publish a larger version with more pictures and articles as they become available. We have chosen some of the more unusual articles to share with you, in this brief edition. We would appreciate any pictures, information or suggestions that you would like to share with us.

David I. Harrow
Sheriff David I. Harrow

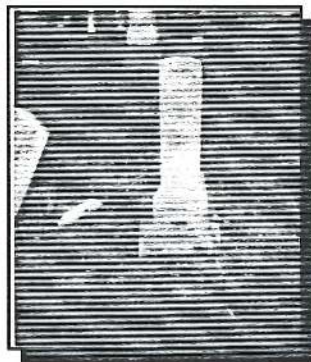
Robert Iler
Former Sheriff Robert Iler

February 10, 2000

First Sheriff of Paulding County
Sheriff Andrew J. Smith
Appointed 1837



Among the early settlers of Paulding County was A. J. Smith, who was born in the year 1810, in the state of New York. He is the son of Thomas and Jane (Jones) Smith, who moved to Indiana when our subject was a boy, and there reared him to manhood. A.J. 's early life was spent in various occupations and in 1856 he came to this county and purchased a farm of 76 acres, which he cleared and improved. Mr. Smith was the first Sheriff of Paulding County, being in politics a republican. His marriage occurred in 1857, at which time Miss Catherine Bogert became his wife. They had nine children: Coe M., Andrew D., William H., Eliia J., Franklin T., John M., Hattie A., Newton C. and Vinnie M. Mr. and Mrs. Smith rank high in the community in which they resided.



Sheriff Smith is buried in Diehl Cemetery located in Allen County, Indiana

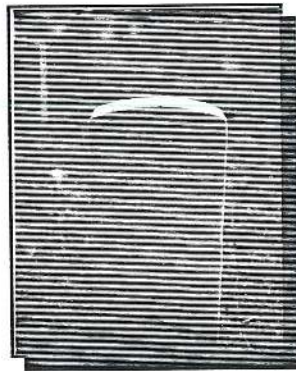
Sheriff John Crossen

Elected in 1853 and 1855



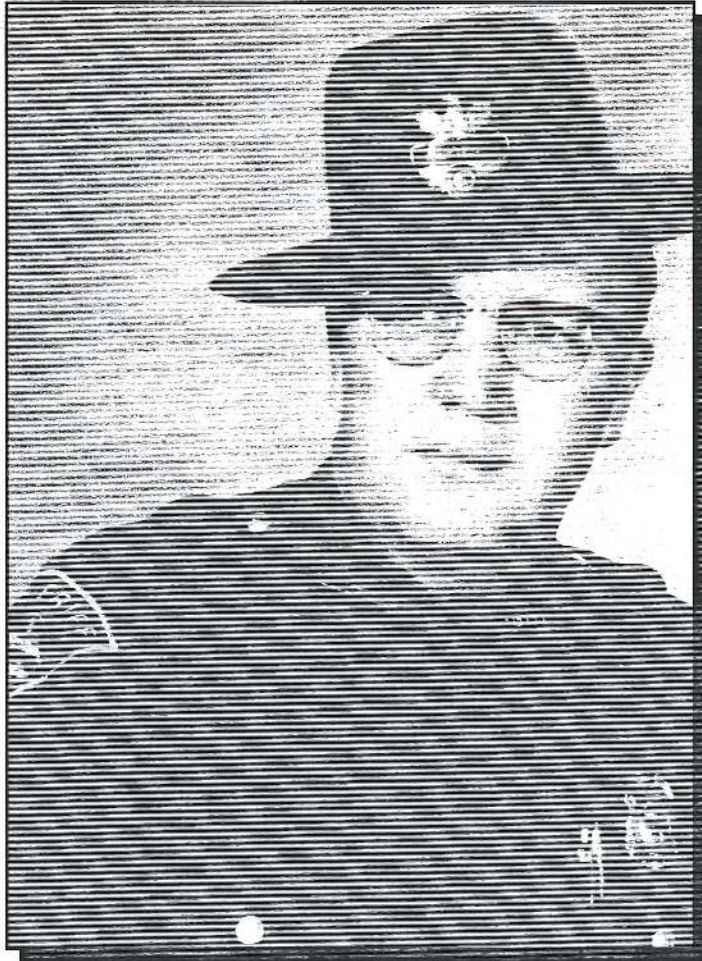
About 1851, John Crossen and his wife, Annie, homesteaded a farm where Oakwood is now located. They built their house somewhere near the present American Legion Hall. About 1852, they opened a store in one room of their house. Mr. Crossen was elected Sheriff of Paulding County in 1853. He enlisted in Company F, 38th Regiment and rose to the rank of Captain before he was killed in the Civil War, in 1864.

Captain Crosson was wounded in a charge which the regiment made at the Battle of Jonesboro, Georgia, September 1, 1864. Captain Crossen died September 10, 1864. This was the severest engagement in which the company participated during the war, and its loss in killed and wounded numbered nearly one-half of the officers and men engaged in the horrendous hand-to-hand struggle.



Sheriff Crossen is buried in Marietta National Cemetery, Section G, Grave 8319 at Marietta, Georgia.

*Longest Service As Sheriff
28 Years*



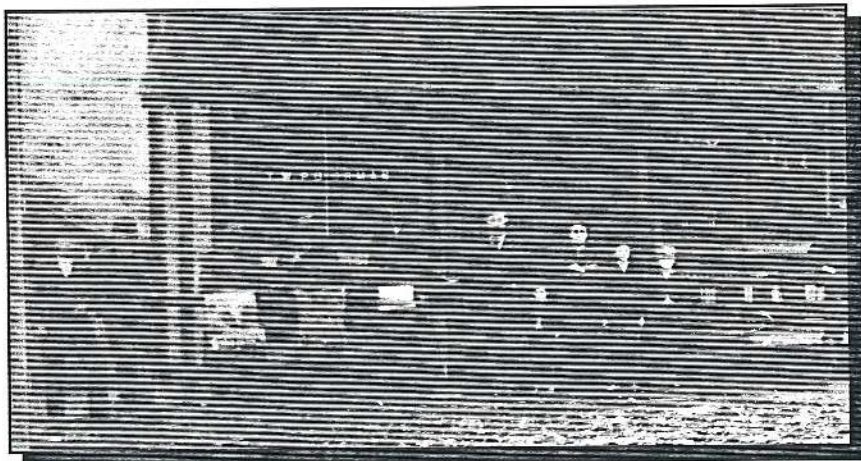
John L. Keeler

Sheriff T. W. Poorman

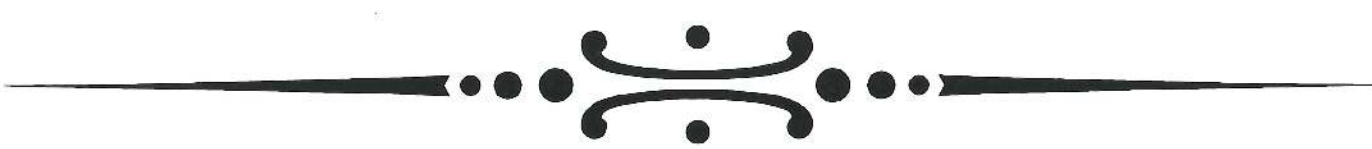
Elected in 1899 and 1902



Sheriff Poorman probably had the most difficult time in assuming his elected office as any elected official in the history of Paulding County. In the 1899 election T. W. Poorman defeated the incumbent Sheriff, Henry B. Wilson to everyone's amazement. Sheriff Wilson's friends in the county government did everything possible to keep Wilson as Sheriff. On the following page is a news article printed in the January's Paulding Republican Newspaper in 1900.



*Photo of T. W. Poorman's Store In The 1890s
Sheriff Poorman Is The Sixth From the Left*


The following was printed in the Paulding Republican Newspaper in January of 1900.

DASTARDLY

Is the Attempt of the Democrats to Steal the Office of Sheriff.

*On the Merest of Technicality, the Commissioners Declared the, Sheriff's
Office Vacant and Appointed Henry B. Wilson to fill the Vacancy*

*People of all Parties Condemn the High -Handed Proceeding as
Being Unjust and Unprecedented*

Never in the history of the politics of Paulding County has such a high handed attempt been made to steal an office and thwart the will of the people as expressed at the polls, as that perpetrated by the Democratic Board of Commissioners backed by the Democratic gang of officer holders and hangers-on here in Paulding, Tuesday on the merest technicality they refused to accept Sheriff Elect Poorman's bond, declared the office of Sheriff vacant and appointed Henry B. Wilson, their defeated candidate, to fill the vacancy.

Last week Mr. Poorman moved into the jail preparatory to assuming the Office of Sheriff, Monday, January 1st, he presented his bond for \$25,000. secured by the United States Fidelity and Guaranty Co., of Baltimore, Md. as good a bond as was ever given by anyone. The Commissioners were not present on Monday so the bond was given to the Prosecuting Attorney, who endorsed it as to legality. On Tuesday, when the Commissioners came in they refused to accept the bond, because they claimed, it was not filed within the time prescribed by statute, and as stated above, declared the office vacant and appointed Henry B. Wilson.

The law provides that the Sheriff-Elect shall file his bond within ten days after receiving his commission and before the first Monday in January following his election. The fact is Mr. Poorman did not received his commission until Tuesday, and he tendered his bond before he attempted to transact any business as Sheriff, thus complying with the spirit and intention of the law.

The question will now be settled by the courts. A petition in mandamus will be filed in the Supreme Court asking; that the commissioners be compelled to accept the bond filed by Mr. Poorman.

The attempt to steal the office from Mr. Poorman through such a small technically is condemned by nearly every one, regardless of politics and the disreputable schemers will find that the honest people of Paulding County will not stand for such high-handed proceedings.

Mr. Poorman has done nothing to disqualify him for performing the duties of the office, neither did he do anything that jeopardized the interest of the public.

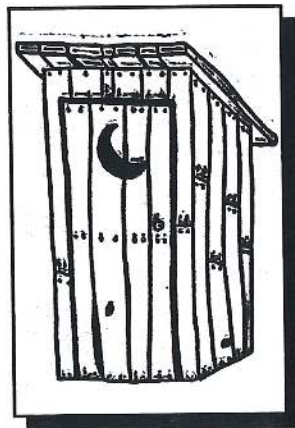
Note: After a brief legal battle with the Commissioners, Sheriff Poorman assumed his duties as Sheriff of Paulding County in March of 1900 and was elected to a second term in 1901.

*From the Paulding County
Commissioner's Journal of 1876*

Ayres H.M.
Sheriff The Board orders and directs that the Sheriff of Paulding County Ohio
proceed to cause the old jail Privy to be torn down,
and fill the Vault up and well cover the same using
Lime or some disinfectant in doing so if it may be
found necessary. And if it is necessary, and cannot
be done without, to cause a small and cheaply Privy
to be erected, at some convenient and not too conspicuous
place upon the Court House Square.

SHERIFF H. M. AYRES

THE BOARD ORDERS AND DIRECTS THAT THE SHERIFF OF PAULDING COUNTY OHIO PROCEED TO CAUSE THE OLD JAIL PRIVY TO BE TORN DOWN, AND FILL THE VAULT UP AND WELL COVER THE SAME USING LIME OR SOME DISINFECTANT IN DOING SO IF IT MAY FOUND NECESSARY. AND IF IT IS NECESSARY, AND CANNOT BE DONE WITHOUT, TO CAUSE A SMALL AND CHEAP PRIVY TO BE ERECTED AT SOME CONVENIENT AND NOT TOO CONSPICUOUS PLACE UPON THE COURT HOUSE SQUARE.



From the Paulding County
Commissioner's Journal of 1862

Wednesday Morning July 2^d 1862

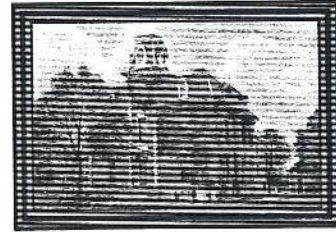
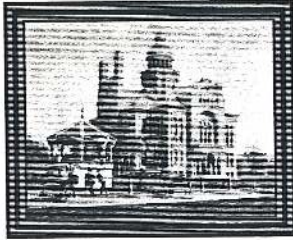
The Board of Commissioners of Paulding County met this morning pursuant to adjournment Present the same as yesterday

The Board of Commissioners finding that F T Mellinger County Sheriff has taking taken more than ordinary care of the Court House Yard in preventing animals from pasturing or running in it. therefore the Board give him the privilege of cutting and appropriating to his own use the grass now growing on the same

SHERIFF F. T. MELLINGER

WEDNESDAY MORNING JULY 2nd 1862

THE BOARD OF COMMISSIONERS OF PAULDING COUNTY MET THIS MORNING PURSUANT TO ADJOURNMENT PRESENT THE SAME AS YESTERDAY. THE BOARD OF COMMISSIONERS FINDING THAT F. T. MELLINGER COUNTY SHERIFF HAS TAKEN MORE THAN ORDINARY CARE OF THE COURT HOUSE YARD IN PREVENTING ANIMALS FROM PASTURING AND RUNNING IN IT. THEREFORE THE BOARD GIVE HIM THE PRIVILEGE OF CUTTING AND APPROPRIATING TO HIS OWN USE THE GRASS NOW GROWING ON THE SAME.



The Tunnel Story

It has long been rumored that a tunnel was constructed between the Courthouse and the present Jail for the purpose of taking prisoners back and forth to the courts. This story has been researched and no plans or talks of construction have been located. The Jail was completed in 1876. When the Courthouse was completed in 1888, the Jail was connected to the water cistern on the third floor of the Courthouse to furnish water to the Jail by an underground pipe. This is the only known connection between the two buildings.

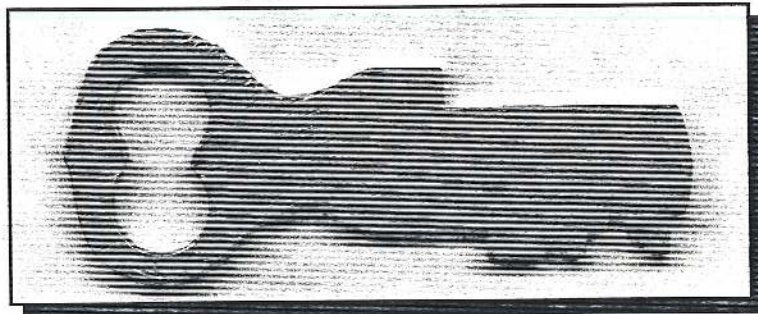


Photo of a original key to the cell blocks

*The following was taken from the actual records of the
Ohio State Penitentiary recorded on December 21, 1894.*

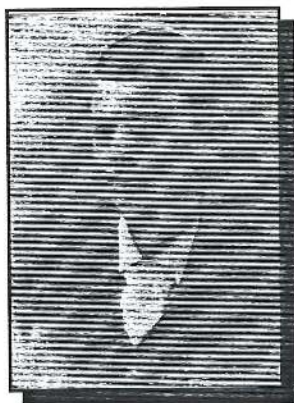
Record of Persons Sentenced to be Executed in the Ohio Penitentiary

Charles Hart

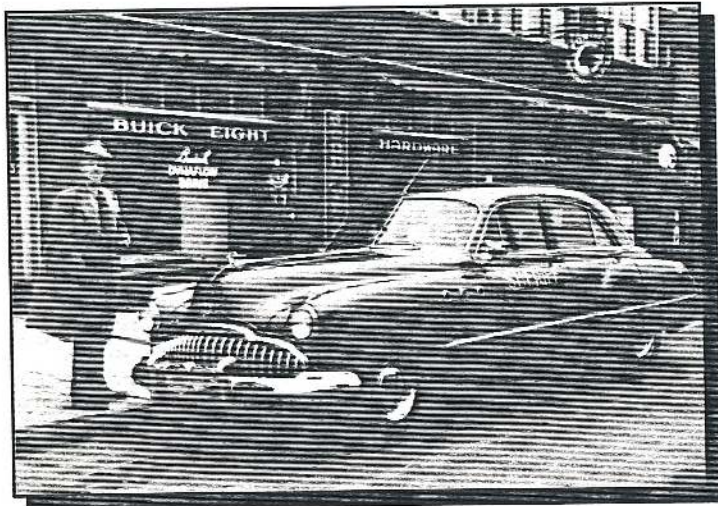
No. 26131

County of Paulding

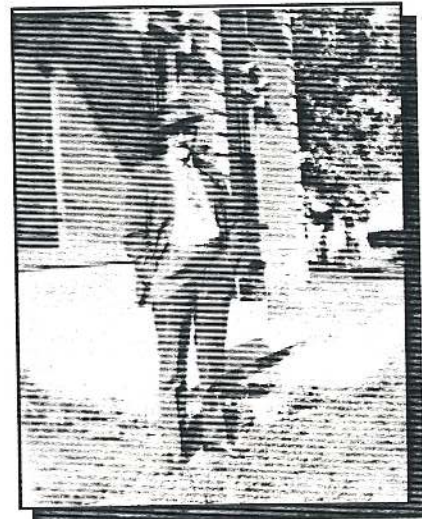
Convicted of Murdering..... Ashby and Elsie Good, November 14, 1894, by striking them in the head with a club and cutting their throats with a butcher knife. Hart, who was 17 years of age was playing in the woods with the Good children. Hart made an assault with the intent to commit rape upon Elsie and to prevent information from being made against him of the fact of the assault. He persuaded the little boy and girl to permit him to tie their hands with cord, telling them that it was in fun. After having tied their hands, he struck each of the children on the head with a club and afterward, cut the throat of each of them from ear to ear with a butcher knife. He also with the same knife, disemboweled both of the children and then made an unsuccessful attempt to burn the bodies.



Charles Hart



Sheriff Wallar and Deputy Condon



Sheriff Hughs



Doc Betts



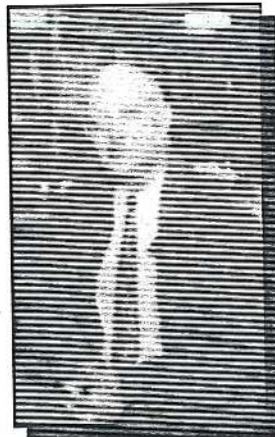
Sheriff Jackson and Family



Sheriff Roy Bates



Sheriff Shaw



Arthur Betts



Sheriff Carnahan



*Paulding County Sheriff's Office
Circa 1876 to 1880*